

Tentative Rulings for Department 403

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Tentative Ruling

Re: ***Prateek v. Hyundai Motor America***
Superior Court Case No. 25CECG02247

Hearing Date: August 6, 2026 (Dept. 403)

Motion: By Defendant Hyundai Motor America to Compel Plaintiff's
Deposition

Tentative Ruling:

To grant. Plaintiff No Name Given Prateek shall appear for deposition within 14 days of service of the order by the clerk, on a date to be specified by counsel for Hyundai Motor America ("Hyundai"). (Code Civ. Proc., § 871.26, subd. (c)(1).) To impose \$1,500 in monetary sanctions against plaintiff's counsel Quill & Arrow, LLP, to be paid to Hyundai's counsel within 14 days of service of the order by the clerk. (Code Civ. Proc., § 871.26, subd. (j)(2).)

Explanation:

Hyundai is statutorily entitled to take plaintiff's deposition within 120 days of Hyundai filing its responsive pleading (see Code Civ. Proc., § 871.26, subd. (c)(1)), which was filed on September 25, 2026. Hyundai's counsel has for over six months been attempting to take plaintiff's deposition, having noticed and re-noticed plaintiff's deposition five times. Plaintiff has been uncooperative, either objecting to the noticed date and failing to provide alternative availability for deposition, or agreeing to the date and then suddenly becoming unavailable on the agreed upon date. Accordingly, the motion to compel should be granted. The court is required to impose \$1,500 in monetary sanctions against plaintiff's counsel for failure to produce their client for deposition, as plaintiff has not opposed the motion or shown good cause for the failures to appear. (Code Civ. Proc., § 871.26, subd. (j)(2).) Another failure to appear will result in dismissal of the action. (Ibid., subd. (j)(3).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 5, 2026.
(Judge's initials) (Date)